

3-4. 24CV00887 Gibson, Casey v. Aristotle Custom Homes LLC et al.

EVENT: (1) Plaintiff Casey Gibson's Motion for Summary Judgment or, in the Alternative, Summary Adjudication Against Defendant Greg Garbolinsky

(2) Plaintiff Casey Gibson's Motion for Summary Judgment or, in the Alternative, Summary Adjudication Against Defendant

Both motions for summary judgment are granted in their entirety.

Plaintiff's Request for Judicial Notice is GRANTED, which includes judicial notice of the admissions which were admitted as to both Defendants. Based on the admissions, the Court finds Plaintiff has met his initial burden of demonstrating no triable issue of fact on all essential elements and Plaintiff's alter ego theory.

It is well settled that judicial admissions are conclusive and eliminates the issue from the case. (See *The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 360) As a result, in addition to the motions being unopposed, Defendants cannot demonstrate a triable issue of fact based on the admissions.

The Court will sign the proposed orders, striking the references to contempt.

The Trial Readiness Conference scheduled for July 15, 2026 and the Court Trial scheduled for July 20, 2026 are both vacated. A status conference is set for August 5, 2026 at 10:30am for status of judgment.

5. 25CV02804 Palacio, Alyssa v. Childers, Cheryl et al

EVENT: Defendants Home Living Skills, Incorporated and Cheryl Childer's Motion to Strike Portions of Plaintiff's Complaint

Meet and Confer

Plaintiff's arguments re: meet and confer are noted, however, CCP 435.5(a)(4) prohibits the Court from denying a motion on meet and confer grounds.

Malice/Oppression

Contrary to Defendants' position, the Complaint does allege ultimate facts from which malice and oppression may be inferred. Although the complaint uses the malice and oppression buzzwords, the Complaint alleges she was injured on the job, that she informed defendants of her injury the next day, and that she was terminated the day after. At the pleading stage we make all reasonable inferences in favor of Plaintiff, see *Kruss v. Booth* (2010) 185 Cal.App.4th 699, 713. Making all inferences in favor of Plaintiff, the inference is that based on the short period of time between when she notified Defendants of her injury and her termination, Defendants acted maliciously or with oppression.

Ratification

Civ. Code 3294(b)

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

[Emphasis Added]

White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 566-567:

Instead, we conclude the Legislature intended the term "managing agent" to include only those corporate employees who exercise substantial independent authority and judgment in their corporate decision making so that their decisions ultimately determine corporate policy. The scope of a corporate employee's discretion and authority under our test is therefore a question of fact for decision on a case-by-case basis.

Defendant first argues that the pleading does not sufficiently identify a "managing agent". Reading the complaint as a whole, the complaint includes allegations against Defendant Cheryl Childers, identified as "program coordinator". "Program coordinator" might fall under the definition of managing agent, or it might not. Making inferences in favor of Plaintiff, as we must at this stage, the program coordinator allegation is sufficient for pleading purposes.

Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 403

Less specificity is required when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,' [citation]; '[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party ... '

Defendant is in a superior position as to information concerning the program coordinator position and the scope of authority for that position. As a result, the Complaint sufficiently alleges a “managing agent.”

As to whether the Complaint sufficiently alleges facts demonstrating ratification, the Court finds that it does not. Although ratification may be established by circumstantial evidence (see *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 621) there are no facts from which ratification can be inferred. As a result, the motion is granted with leave to amend to allege facts demonstrating ratification.

Defendant Cheryl Childers

The punitive damages theory with respect to defendant Childers appears to parallel the theory as to Defendant Home Living Skills – her termination shortly after providing notice of a disability could lead to the inference of malicious or oppressive conduct. However, as defendants noted, personnel management actions such as termination do not qualify as harassment, see *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.

With respect to Defendant Childers, the pleading’s allegations of harassment are conclusory other than the allegation that she was improperly terminated, but as noted that does not establish harassment. Because harassment is the only legal theory with respect to Defendant Cheryl Childers, the punitive damages allegations necessarily fail. The motion is granted with leave to amend as to the punitive damages allegations regarding Defendant Cheryl Childers.

To the extent leave to amend is granted, Plaintiff shall amend within 20 days’ notice of this order. Defendants shall prepare the form of order within two weeks.

6. 26CV02051 Intelifund, LLC v. CD

EVENT: Petition to transfer structured settlement payment rights

The petition is continued to July 8, 2026 at 9:00am. Petitioner is directed to submit an unredacted Petition so that the Court can conduct a proper review no later than June 24, 2026.